
Journal

1991 MLD 1676

Court

SINDH HIGH COURT

Date

1991-05-07

Appeal No.

CRIMINAL APPEAL NO. 74 OF 1989

Judge

QAISER AHMED HA MIDI

Parties

MUHAMMAD ASLAM—APPELLANT 'VERSUS THE STATE—RESPONDENT

Lawyers

LIAQUAT ALI SHAIKH FOR APPELLANT. M. HAYAT QURESHI FOR A. G. FOR THE STATE.

Statutes

PENAL CODE (XLV OF 1860) - S. 304 PENAL CODE (XLV OF 1860) - S. 34

Judgment

Appellant Muhammad Aslam, co-accused Muhammad Siddique (since acquitted) and Muhammad Yaqub (since dead) were tried by Miss Yasmeen Abbasi, IInd Additional Sessions Judge (West) Karadii, for the offence under m section 302/307/34, P.P.C. Muhammad Yaqub, who was the main accused in this case died during the pendency of the case and consequently, the case against him abated. The case against co-accused Muhammad Siddique was not proved and he was acquitted. The appellant was, however, found guilty for the offence under section 300, P.P.C. (304, P.P.C.) and vide judgment, dated 15-6-1989 was sentenced to suffer R.I. for three years. By this appeal filed under section 410, Cr.P.C. the appellant has challenged his conviction and sentence.

2. Deceased Haji Sadique owned 'New Madina Hotel' situated near Oil Terminal, Keamari, Karachi. Accused Muhammad Yaqub (since dead) owned the adjoining hotel known as 'Aamir Hotel'. Salahuddin (P.W.1) and Syed Nizamuddin (P.W.3) worked as waiters in 'New Madina Hotel', while accused Muhammad Siddique (since acquitted) worked as waiter in 'Aamir Hotel'. It is alleged that on 21-7-1985 Salahuddin (P.W.1) served breakfast to a driver of Mazda van, who left without making payment and returning crockery. On 22-7-1985 when the said driver again came to 'New Madina Hotel', Salahuddin & (P.W.1) asked from him about the crockery and charges of breakfast and then it transpired that the money and crockery were received by accused Muhammad Siddique (since acquitted) waiter of 'Aamir Hotel', which resulted into a quarrel between Salahuddin (P.W.1), and accused Muhammad Siddique (since acquitted). Due to intervention of deceased Haji Sadique, the proprietor of 'New Madina Hotel' the quarrel subsided. However, on the same day at about 10 p.m. Salahuddin (P.W.1) went to parking place to take order for tea when he was given beating by accused Muhammad Siddique (since acquitted) and his unknown companions by means of iron pipes and iron bars. There was bleeding from the wounds of Salahuddin (P.W.1), who complained about it to deceased Haji Sadique who was sitting at the counter of his hotel.

Deceased Haji Sadique then complained to accused Muhammad Yaqub (since dead) who was sitting in his hotel. There was exchange of hot words and it is alleged that on the instigation of the present appellant accused Muhammad Yaqub (since dead) took out a revolver and fired four shots which hit deceased Haji Sadique who fell down near the counter of his hotel. Both Haji Sadique and Salahuddin were shifted to Civil Hospital Karachi in a taxi car. Muhammad Suleman Mirza, S.H.O: Jackson Police Station was informed on telephone about the arrival of these injured persons by concerned Medical Officer; who rushed to Civil Hospital Karachi, where he recorded 154, Cr.P.C. statement of Syed Nizamuddin on 23-7-1985 at 12-15 a.m., which was subsequently incorporated in 154, Cr.P.C. book maintained at police station. Accused Muhammad Yaqub (since dead) appeared at police station who produced his licensed revolver containing four empties and two live bullets which included one missed one. Such Mashirnama was prepared. The Police Officer then inspected the Wardat and prepared such Mashirnama. On 27-7-1985 Haji Sadique died in the hospital and his inquest was held. On 26-7-1985 the present appellant was arrested. After completing the investigation all the three accused were challaned.

3. At the trial the prosecution examined Salahuddin (P.W.1), Ghulam Muhammad (P.W.2), Syed Nizamuddin (P.W.3), Salim (P.W.4), Hazrat Ali (P.W.5),, Dr. Imtiaz Hussain Shah (P.W.6), Muhammad Feroz P.C. (P.W.7), Dr. Shaft Muhammad Nizamani (P.W.8) and Muhammad Suleman Mirza S.H.O. (P.W.9).

4. In his statement recorded under section 342, Cr.P.C. the appellant has disputed the case of the prosecution. He has taken the plea of alibi in the following words:— * \ j v - > "On the day of incident I had gone in Aqiqa function at Bohra Pir on the invitation of one Sirajuddin. Several

other persons were also present there. A video film was also taken on that occasion. I came back to my home at 11 p.m." " 5. The appellant did not step into the witness-box. He, however, examined Sirajuddin (D.W.1), Zia Javed (D.W.2), and Sherdil Khan (D.W.3) in his defence.

6. . On the assessment of evidence available on record, the learned Additional Sessions Judge found the appellant guilty for the offence under section

304, P.P.C. (wrongly mentioned as section 300, P.P.C., which is only a defining * section), and convicted him accordingly. It is in these circumstances that the present appeal has been filed.

r »

7. I have heard Mr. Liaquat Ali Shaikh, learned counsel for the appellant and Mr. M. Hayat Qureshi, learned counsel for the State. I have also gone through the record of this case carefully.

8. The perusal of the record shows that there are two incidents in this case. In the first incident Salahuddin (P.W.1) was given beating by means of iron bars by accused Muhammad Siddique (since acquitted) and his companions. The first * i incident is disclosed in F.I.R. (Exh.8-A) in the following words:— p - f __ i * "Today at about 10 p.m. one boy came and asked Salahuddin that some . - persons want tea near parking place. Therefore, in order to confirm the tea order, Salahuddin went there, but returned soon bleeding. He told Seth. Haji Sadique who was sitting at the counter that Siddique and his unknown companions have beaten him with pipe and iron bars." i It, therefore, follows that except Salahuddin (P.W.1), this incident was not witnessed by any other person and that the only culprit who was identified at that time was accused Muhammad Siddique (since acquitted). Salahuddin i (P.W.1), when examined in Court has tried to improve the case of the prosecution by stating as follows:— r "On the same day at about 10 p.m. one boy placed order for tea. When I took the tea towards the boy all of a sudden two persons, namely, Siddique waiter and one Aslam caught hold of me, and Siddique gave me blow on my head with iron bar. Aslam gave blow on my hand with iron pipe." 8. This is clearly an afterthought. Ghulam Muhammad (P.W.2) who was also present in 'New Madina Hotel' when Salahuddin returned bleeding has testified as follows:-- "At that time one outdoor waiter (Bahar Wala) of the hotel came to Haji Sadique, the owner of the hotel and informed him that he has been beaten by fhe man and outdoor waiter of Yaqub with pipe and iron bar." 9. Saleem (P.W.4) who too was present in 'New Madina Hotel' when Salahuddin returned bleeding has, however, testified as under:-- "All of a sudden one outdoor waiter of hotel came from outside in injured condition. On inquiry of Seth Sadique injured waiter disclosed that he has been beaten by the waiter of Yaqub and his companions by means of Dandas and iron bars." 10. Thus, there are different versions of all the four witnesses with regard to the first incident. No reliance can, therefore, be placed upon the testimony of Salahuddin (P.W.1) when he stated that the present appellant was one of the persons who had given him beating. To this extent I endorse the view taken by learned Additional Sessions Judge, although for different reasons.

11. The second incident in which deceased Haji Sadique lost his life at the hands of accused Muhammad Yaqub (since dead) took place all of a sudden at the spur of moment without any previous hostility.

m 1 12. The evidence which has come on record shows that appellant Muhammad Aslam was known to complainant Syed Nizamuddin (P.W.3) and others prior to this incident and according to them he used to sit at the counter of 'Aamir Hotel\ Salahuddin (P.W.1) has testified in clear terms that appellant Muhammad Aslam had instigated accused Muhammad Yaqub (since dead) to kill Haji Sadique. He has also denied the suggestion put to him in cross-examination that he did not know the name of Muhammad Aslam at the time of incident. Ghulam Muhammad (P.W.2) who is

a casual visitor of this hotel has made it clear that appellant Muhammad Aslam was known to him previously. Syed Nizamuddin (P.W.3) who lodged F.I.R. in this case was working in 'New Madina Hotel' during the days when this incident took place. In cross-examination he made the following admission:-- "Accused Aslam is brother-in-law of accused Yaqub. Accused Aslam was known to me from, three months prior to this incident as he was sitting at the counter of his hotel." Saleem (P.W.4) has also implicated the present appellant by ascribing the specific role of instigation to him. His evidence, however, shows that the police had informed him about the name of appellant after this incident.

13. With this admitted position the omission to disclose the name of Muhammad Aslam in F.I.R. (Exh.8-A) is very significant and the same cannot be brushed aside lightly. If complainant Syed Nizamuddin (P.W.3) knew the appellant prior to this incident, there was no reason for not disclosing his name in F.I.R. which was lodged after two hours of the incident, when the complainant had sufficient time to consult other witnesses.

14. The appellant has taken the plea of alibi and he has examined Sirajuddin (D.W.1), Zia Javed (D.W.2), and Sherdil Khan (D.W.3) in support thereof. The learned Additional Sessions Judge has dealt with the defence evidence in very casual manner.

The proper mode of appraisal of evidence in a case of this kind was to consider the reliability of each witness separately and then to examine the case as a whole and also to examine the credibility of the witnesses in juxtaposition with each other and in relation to the general circumstances of the case and it is only when it is found that the evidence as a whole leaves no reasonable doubt that the appellant is guilty that a conviction can safely be recorded.

* 15. Quite admittedly the fatal shots are attributed to accused Muhammad I Yaqub (since dead). The role attributed to appellant in F.I.R. (Exh.8-A) is clear from the following fact:— * I>. I-S"" £J-» OyK* OAfjl jJL. A ; The above role, even if admitted does not saddle the appellant with constructive liability. There is nothing on record to show that the appellant knew or had reason to believe that accused Muhammad Yaqub (since dead) was armed with a F- revolver. Section 34, P.P.C. embodies a principle of joint liability in the doing of a criminal act, and the essence of that liability is the existence of common intention. It may be recalled that the incident took place all of a sudden without any premeditation.

Mere presence of an accused will, therefore, not make him liable for what the others had done. The cases of Ahmad Khan and 2 others v. The State reported in 1991 P Cr. L J 304, Abdul Khaliq and another v. The State reported in 1982 P Cr. L J 466 and Asad Azhar v: The State reported in 1984 m P Cr. L J 990 are clear on this subject. * 16. Having regard to the above circumstances, I am clear in my mind that the case against the appellant is doubtful in nature.

He is accordingly acquitted and the impugned judgment is set aside. The appellant who is on bail is discharged from his bail bond.

In the result the appeal is allowed. " Appeal accepted having jurisdiction in the place where the ward for the time being ordinarily resides; or (c) in respect of any proceeding transferred under section 4-A, the Court of the officer to whom such proceeding has been transferred." Section 4-A of the Guardians and Wards Act gave power to the High Court to confer jurisdiction on subordinate judicial officers and to transfer proceedings to such officers. It reads as follows:— k .

"4-A. Power to confer jurisdiction on subordinate judicial officers and to transfer proceedings to such officers.—(1) The High Court may, by general or special order, empower any officer exercising original civil jurisdiction subordinate to a District Court, or authorise the Judge of any

District Court to empower any such officer subordinate to him, to dispose of any proceedings under this Act transferred to such officer under the provisions of this section.

(2) The Judge of a District Court may, by order in writing, transfer at any stage any proceeding under this Act pending in his Court for disposal to any officer subordinate to him empowered under sub-section (3) The Judge of a District Court may at any stage transfer to his own Court or to any officer subordinate to him empowered under subsection (1) any proceeding under this Act pending in the Court of any other such officer. Y (4) When any proceedings are transferred under this section in any case in which a guardian has been appointed or declared, the Judge of the District Court may, by order in writing, declare that the Court of the Judge or officer to whom they are transferred shall, for all or any of the purposes of this Act, be deemed to be the Court which appointed or declared the guardian." Therefore, under the Guardians and Wards Act, jurisdiction to decide guardianship matters was conferred upon "the Court" as defined in it. Obviously, it meant the Court of a District Judge or a subordinate Court empowered under section 4-A of the Act by the High Court. This position prevailed till the West Pakistan Family Courts Act, 1964 (Act XXXV of 1964) was enforced on July, 18, 1964. As the preamble to the Act would show, it created special forums for expeditious decision of certain matters specified in the schedule to the Act and conferred exclusive jurisdiction in the new forums regarding matters which initially consisted of six items namely, (1) dissolution of marriage; (2) dower; (3) maintenance; (4) restitution of conjugal rights; (5) custody of children; (6) guardianship. In 1969, jactitation of marriage was also included in the schedule.

Section 3 of the Act provided for establishment of Family Courts, section 4 laid down the qualifications for the appointment of the Judge of a Family Court and i stated that no person shall be appointed as a Judge of a Family Court unless he is or has been a District Judge, or has been a Senior Civil Judge or Civil Judge, 1st Class, section 5 conferred exclusive jurisdiction on Family Courts to entertain, hear, and adjudicate upon the scheduled matters, section 6 provided for the place of sittings of the Family Courts, section 7 about the manner of institution of suits in the Family Courts. Rest of the sections of the Act except sections 14 and 26 which in the context shall be referred to later, are not material for the purposes of the present case. Section 14 provided for a forum of appeal and section 26 empowered the Government to frame rules under the Act. By Ordinance X of 1966—West Pakistan Family Courts (Amendment) Ordinance, 1966 enforced on 4th April, 1966, section 4 was substituted to read as "No person shall be appointed as a Judge of a Family Court unless he is or has been a District Judge, an Additional District Judge or a Civil Judge". By W.P. Act (1 of 1969), for the words "or a Civil Judge", words "a Civil Judge or a Qazi appointed under the Dastur-ul-Amal Diwani, Riasat Kalat" were substituted. Under section 26 of the * Act, Rules commonly known as West Pakistan Family Courts Rules, 1965 were framed by the Government which came in force on November 2, 1965. There are provisions in these Rules, altered from time to time, which throw light and assist for discovering of the forum for trial of guardianship disputes and hearing of appeals from them. Rule 6 provided, that the Court which shall have jurisdiction to try a suit which included an application for the custody of children or guardianship under the Guardians and Wards Act, 1890, in terms of rule 2 will be that within the local limits of which the cause of action wholly or in part arose or where the parties reside or last resided: Provided that in suits for dissolution of marriage or dower, the Court within the local limits of which the wife ordinarily resides shall have also jurisdiction. Rule 7 as originally enacted was as follows:—"7.-(I) Suits relating to custody of children and guardianship shall be instituted in, and be heard and tried by the Court of the District Judge, but such Court may transfer any such suit to the Court of £he Additional District Judge, the Senior Civil Judge, the Civil Judge, First Class or the Civil Judge, First Class (Additional), having jurisdiction as provided in rule 6, and thereupon the Court to which such suit is so transferred shall have jurisdiction to hear and try the same.

(2) Suits relating to the custody of children and guardianship shall be instituted, heard and tried in the Court of the Senior Civil Judge, the Civil Judge, First Class, or the Civil Judge, First Class (Additional), having jurisdiction as provided in rule 6 and where in any District there is no such Court, such suits shall be instituted in, and heard and tried by the Court of District Judge.

(3) Notwithstanding anything contained in. sub-rules (1) and the Court of District Judge may—
 (a) recall any suit made over by it for trial under sub-rule (1) to an Additional District Judge, Senior Civil Judge, Civil Judge, First Class or Civil Judge, First Class (Additional) and either try such suit himself or refer it for trial to any other Court within the District; (b) send for the record and proceedings of any suit pending for trial in the Court of Additional District Judge, Senior Civil Judge, Civil Judge, First Class, or the Civil Judge, First Class (Additional) and hear and try the suit itself or refer it for trial to any other Court within the District and thereupon the District Judge or the Court to which such suit is so transferred, as the case may be, shall have jurisdiction to hear and try the suit." # Interpreting the rule in the form then existing, in case of Mst. Hayat Khatoon versus Allah Dino and another 1985 CLC 1343, Nasir Aslam Zahid, J., in para. 5 of the judgment observed:-- "In my view, the provisions of law are reasonably clear and there appears to be no ambiguity. As observed earlier, the power was with the Government to establish the Family Courts. In accordance with this power, by rule 3 of the West Pakistan Family Courts Rules, 1965, it was provided that Courts of District Judge, Additional District Judge and Civil Judge, shall be the Family Courts for the purposes of the Act but subject to the provisions of rule 7. And, as seen earlier, rule 7 specifically provides that suits relating to custody of children and for guardianship shall be instituted in and to be heard and tried by the Court of the District Judge but the District Judge may transfer any such suit to a Family Court presided over by an Additional District Judge or a Civil Judge. Reading rules 3 and 7 together with section 2 (1) (b) and section 3 it follows that a family suit for custody of children must be instituted in the Court of District Judge who can then transfer the case to an Additional District Judge or Civil Judge having Jurisdiction under rule 5 (it should be rule 6). Mr. AA. Dareshani is, therefore, correct in his contention that the family suit under section 25 of the Guardians and Wards Act was wrongly instituted by respondent No.1 in the Court of Civil Judge, Kandiaro.

It should have been instituted in the Court of District Judge, Nawabshah who could then transfer the case to a Court having jurisdiction under rule 5 of the West Pakistan Family Courts Rules, 1965." In 1969, rule 7 of the Family Courts Rules, 1965 was substituted in a new form to read as follows:-- "7 (1) Suits triable under the Act shall be instituted in, and be heard and tried by the Court of the Civil Judge having jurisdiction as provided in rule 6, and where in any District there is no such Court, such suits shall be instituted in, and be heard and tried by the Court of the District Judge or the Additional District Judge.

(2) Notwithstanding anything contained in sub-rule the Court of the District Judge may send for the record and proceedings of any suit pending for trial in any Court in the District and hear and try the suit itself or refer it for trial to any other Court within the District, and thereupon the Court of District Judge or the Court to which such suit is so transferred, as the case may be, shall have jurisdiction to hear and try the suit." In Janat Bibi v. Ramzan & another NLR 1980 Civil BJ 100, Muhammad Amin Butt, J., interpreted the amended rule to hold that a Civil Judge was competent to try the guardianship case. After quoting the substituted rule, it was observed in that judgment: — "A bare reading of the above rule would show that the Civil Judge Minchinabad had the jurisdiction to try the present case as the petition was instituted on 4-2-1978.

6. Section 25 of the West Pakistan Family Courts Act, 1964 provides that a Family Court shall be deemed to be a District Court for the purposes of the Guardians and Wards Act, 1890. The section further provides that in dealing with the matters specified in the Guardians and Wards Act the Family Court shall follow the procedure prescribed in that Act. Thus the powers and.

functions of the District Court under the Guardians and Wards Act ought to be performed by the Family Court which by fiction of law is to be deemed to be the District Court.

7. Faced with this situation the learned counsel for the petitioner was unable to advance any argument in support of his attack on the powers of the learned Civil Judge, Minchinabad who was entitled to exercise jurisdiction of the Family Court under the provisions of rule 7 as amended." By Gazette of Punjab, Extraordinary 7th April 1972, sub-rule (2) of rule 7 was deleted and sub-rule (1) of rule 7 was re-numbered as rule 7. By the same gazette notification, rules 8 and 9 of 1965 Rules were deleted. In *Asif Mowjee versus Mst. Fatema A.*

Mowjee and another PLD 1987 Karachi 239, Mr. Justice Abdul Qadeer Chaudhry, now an Honourable Judge of the Supreme Court, on comparison of the provisions in the related Acts observed:—"In order to appreciate the respective contentions of the parties it is necessary to refer to the various provisions of the two relevant laws. Section 5 of the Act of 1964 provides that the Family Court shall have exclusive jurisdiction to entertain, hear and adjudicate upon the matters specified in the Schedule. Item numbers 5 and 6 of the Schedule relate to the custody of children and guardianship respectively.

Section 25 of the same Act stipulates that a Family Court shall be deemed to be a District Court for the purposes of the Act of 1890 and notwithstanding anything contained in this Act (Act of 1890) shall in dealing with the matters specified in that Act, follow the procedure prescribed in that Act. The Court has been defined in section 4 (5) (b) (ii) of the Act of 1890 as . under: * .

"In any matter relating to the person of the ward, the District Court having jurisdiction in the place where the ward for the time being ordinarily resides."

Under section 7 of Act of 1890 the welfare of the minor would be the paramount consideration in appointing a guardian of his person or . property. Under section 17 of the same Act the Court would consider certain facts in appointing a guardian. According to section 19 the Court would not appoint guardian in certain cases* Under section 25 if a ward leaves or is removed from the custody of a guardian of his person the Court may. return the ward to the custody of his guardian if it is of the opinion that it may be in the welfare of the minor. Schedule to Act of 1964 has mentioned custody of minor" and guardianship of minor distinctly. There are two different items.. Every expression or word of a . statute has to be interpreted in its ordinary sense and no word of the statute shall be considered as superfluous. Rule 6 has to be interpreted in . a sense which is in consonance with the provision of the Act. In my view in the matter of the custody of the minor an application is maintainable at a place where cause of action has arisen. Such an application can also be moved in a place where the minor ordinarily resides. As regards guardianship application, an application would be maintainable only in a Court where the minor ordinarily resides. By means of section 25 of the Act of 1964 residence of the minor would give the Court jurisdiction to adjudicate upon the matter." I have quoted this judgment merely to show that a distinction about the forum for the trial in matters relating to the appointment of a guardian for the person and property has been drawn in it. Otherwise, rule 6 of 1965 Rules looked to be all pervasive and did not ex facie admit of such a distinction. The position as it emerges from the survey of the related provisions of the two Acts; Guardians and Wards Act 1890, Family Courts Act 1964 and Family Courts Rules 1965 as amended up to date, was that the application under section 25 of the Guardians and Wards Act, 1890 was rightly instituted in* the Court of Senior Civil Judge and correctly transferred by him to the Civil Judge who heard and finally decided it. Unfortunately, and I speak with immense respects, Family Courts Rules which governed the forum had not been taken into account in the judgment of my Esteemed brother which proceeded on sole consideration of section 4-A of the Guardians and Wards Act. In my opinion, rules 6 and 7 of the Family Courts * L " J Rules 1965 made all the difference which escaped

notice in the aforesaid judgment. It is in this view that I respectfully differ from my learned brother and hold that as Civil Judge, 1st Class, the trial Court was competent to try the application under section 25 of the Guardians and Wards Act 1890 and its decision did not suffer from defect of jurisdiction. On merits, I have already said that it is a correct decision.

Reverting to the objection about the competence of Additional District Judge to hear the appeal, there is no ambiguity about his jurisdiction because section 14 of the Family Courts Act is absolutely clear on this point. For facility of reference, it is reproduced:- "14, Appeal. (1) Notwithstanding anything provided in any other law for the time being in force, a decision given or a decree passed by a Family Court shall be appealable— (a) to the High Court, where the Family Court is presided over by a District Judge, an Additional District Judge, or a person notified by Government to be of the rank and status of a District Judge or an Additional District Judge, and (b) to the District Court, in any other case.

(2) No appeal shall lie from a decree passed by a Family Court— (a) for dissolution of marriage, except in the case of dissolution for reasons specified in clause (d) of item (viii) of section (2) of the Dissolution of Muslim Marriages Act, 1939.

(b) for dower not exceeding rupees one thousand; (c) for maintenance of rupees twenty-five or less per month." In terms of section 14 of the Family Courts Act, in case of a decision or a decree passed by a Family Court presided over by a Civil Judge, appeal lies to the 'District Court'. Section 21 of the Punjab General Clauses Act 1956 says that "District Court" shall mean the principal Civil Court of original civil jurisdiction of a district; but shall not include the High Court in the exercise of its ordinary or extraordinary original civil jurisdiction. Section 2 (2) defines "District Judge" to mean "the Judge of a principal Civil Court of original jurisdiction, but shall not include the High Court in the exercise of its ordinary or Extraordinary original civil jurisdiction". Under section 2 (4) Civil P.C., a District Court is defined as the principal Civil Court of original jurisdiction in the District. Section 5 of the Civil Courts Ordinance 1962 empowered the Government in consultation with the High Court to appoint as many persons as it thinks necessary to be the District Judges and post a District Judge to each District. Section 6 of the Ordinance deals with the appointment of Additional District Judges and in subsection (2) says that an Additional District Judge shall discharge such functions of a District Judge as the District Judge may assign to him and in discharge of those functions he shall exercise the same powers as the District Judge. From this, it is clear that a District Judge can transfer any case pending before him to an Additional District Judge who shall then have the same powers in regard to it as the District Judge. According to definitions in section 2 of the Family Courts Act, expression 'District Court' as defined in section 2 (4) of Civil Procedure Code has been adopted for purposes of the Act. It is not correct to state that learned District Judge had no jurisdiction to assign the appeal to learned Additional District Judge and the latter had no power to hear and decide it. Therefore, his decision did not suffer from want of jurisdiction. * Having regard to the above, writ petition fails and is dismissed in limine. At the end, I must observe that ordinarily judgment of a single Judge must be taken as binding by a brother Judge sitting singly so as to avoid conflict of opinion in the High Court and confusion in the subordinate Courts whose duty is to follow what is said and observed by the High Court.

In course of hearing of the writ petition, as I was differing with my learned brother, on a point of law decided by him, I thought, I should refer the case to a larger Bench for an authoritative pronouncement on it, but since my learned brother had not taken into account rules 6 and 7 of the Family Courts Rules, 1965 in deciding on the powers of a Civil Judge, 1st Class to hear guardianship matters, which in my opinion made all the difference, upon reflection, I dropped the idea for a reference to a larger Bench and opted to decide the point myself.

M .B. A./S-839/L. Ptition dism issed.

easylaw Case No.

1104882

Download Case

Copyright © 2021 easylaw.ai. All Rights Reserved. | Disclaimer (<https://www.easylaw.ai/disclaimer>)